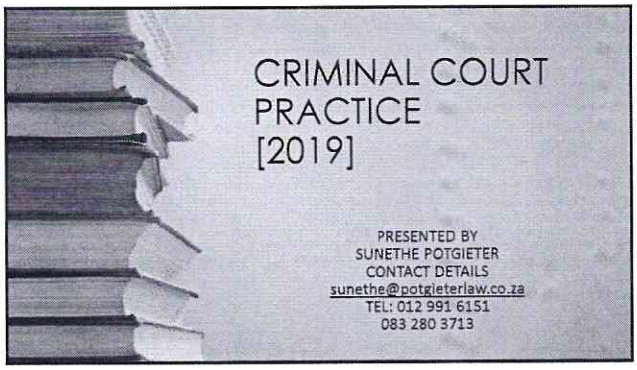


CRIMINAL COURT PRACTICE [2019]

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PREFACE & INTRODUCTION

- Prior acquisition of subject specific substantive and theoretical knowledge is assumed.
- Required skills:
  - Critical and analytical grasp of legal concepts, principles, theories and values;
  - Sourcing, collecting, collating analysing, and evaluating information;
  - Creative, critical, innovative and ethical problem solving
- Learning outcomes

2

SCOPE OF COURT PRACTICE (4)

- Relationship:
  - During subsistence of mandate;
  - Thereafter? [Privilege]
- Assistance:
  - Opinion;
  - Release after arrest
  - Representations
  - Representations at trial
  - Institution of Appeal or Review
  - Early release or pardon

3

PRACTICE NOTES : SOURCES (4)

- Constitution Act 108 of 1996
  - Sec 2 – Supremacy
  - Sec 172 – Role of Courts
  - Chapter 2 – Bill of Rights

4

Other Sources - Statutes

- Criminal Procedure Act 51 of 1977 (CPA)
- Criminal Law Amendment Act 105 of 1997
- Criminal Law (Sexual Offences and Related Matters) Act 32 of 2007
- Child Justice Act 75 of 2008
- Magistrates Court Act 32 of 1044
- Supreme Court Act 59 of 1959

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More Statutes

- Law of Evidence Amendment Act 45 of 1988
- Criminal Matters Amendment Act 18 of 2015 (1/6/2016)
  - Creates new offences relating to essential infrastructure
- The Judicial Matters Amendment Act 24 of 2015 (8/1/2016)
- Other

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Sources

- Common Law
  - General principles of criminal procedure or evidence
  - Authors – Text books and articles
  - Law Reports
  - English Law and comparative research
  - Sec 39 - Court MAY have regard to foreign comparable case law iro the interpretation of the Bill of Rights – (Canada)
  - *Stare decisis*

7

Participants (6)

- SAPS and other law enforcement agencies
- The prosecuting authority – all prosecutors
- Witnesses
  - State / Defence – permission to consult *
- Correctional services
- Clients
- Defence attorney – Effective and Competent
- Dept. of Justice personnel

8

Defence Attorney

- SA Criminal Procedure based on accusatorial principles
- Presume State and Defence on equal footing
- Little or no allowance made for inexperience.
- Accused is normally bound by actions of attorney.
- Possibility of review if client is prejudiced by incompetent attorney – USA law reports

9

The High Courts (12)

- **The Constitutional Court**
  - Sec 98 Constitution
  - Judges appointed by president
  - Led by Chief Justice
  - Address as "Mr Justice ... / Justice ...
  - Chief Justice Mogoeng Mogoeng
  - Deputy Justice Jafta
- **The Supreme Court of Appeal**
  - SCA led by the president of the SCA
    - Mandisa Maya J
- **Provincial and Local Divisions**
  - HC's led by JP's
  - Address as My Lord / Lady
    - Dunstan Mlambo J
  - Registrars

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Lower Courts (13 & 80)

- Magistrates Courts
  - Also periodical courts
  - Jurisdiction for single district – 4km
  - Limited sentencing jurisdiction and slide 110
  - Limited scope of legal jurisdiction
- Regional Court
  - Number of districts
  - Extended jurisdiction

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Ethics (14)

- Separate class
- Conflict of interest
- *Chisvo* - Hold brief for 2, withdraw for 1, cannot cross other
- *Moseli , Jacobs, Dintwe* - Immediate withdrawal when conflict arises between clients
- *Retha Meiring Attorneys v Walley* - Cannot by agreement cancel out rules pertaining conflict

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Pre-trial (16)

- Taking Instructions
  - Canvass situation
  - Who approached you
  - Avoid discussing matters or advising 3rd parties
  - Hiding from police
  - Types of assistance
    - How to commit an offence – consult not covered
    - Second opinion
    - Advice on procedure
    - Post Conviction / Sentence
    - Release from custody

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Considerations : Fees and Alternatives

- Time – double booking
- Difficulty – remember competent and effective
- Costs
  - Agreement
  - Payment plan
  - Lower fees
  - Taking instruction when clear that client cannot sustain payment – fleecing
- Legal Aid – Law Clinics – Pro Bono

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Rights of the Accused (20)

- The right to remain silent
  - Pre-trial
    - Sec 35 – right to be presumed innocent
    - The accused may be questioned
    - He may refuse to answer
    - Except if a legal duty to give info – NB Sec 41 of CPA
    - Sec 35(5) exclusion of evidence obtained while infringing rights
    - (the court will exclude if inclusion will render trial unfair or will otherwise be detrimental to the administration of justice)

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Right to remain silent

- At trial
  - Right to a fair trial
  - Accused may remain silent
  - Silence at plea
  - Plea proceedings as evidence?
  - Silence at trial
  - Consequences

16

Silence cont

- Rationale *S v Thebus* 2003 (6) SA 505 (CC)
  - Concern for reliability (by deterring improper investigation)
  - Right to privacy and dignity not to be lightly eroded.
  - Privilege against self incrimination and the presumption of innocence.
- To speak or not to speak
  - Disadvantages
    - Accused bound to disclosed defence
  - Advantages
    - May avoid trial
    - May avoid negative insinuation

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Statements made to Police

- Sec 335 CPA
  - Obtain a copy of any statement made to police asap.
  - The warning statement.
  - The confession.

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Right to fair trial - Information

- Access to police docket

  (*Shabalala and Five Others v Attorney General of the Transvaal and Another* 1996 (1) SA 725 (C))
- Information not in the docket?
- Consultation with State Witnesses *

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Right to Legal Representation (23)

- Sec 35(3)
- Pre-Trial Procedures
  - Identity parades
  - Interrogation – to speak or not to speak

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ID Parade

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Right to be brought before Court & Speedy Trial

- Sec 50 CPA
- Sec 35(1)(c) and Sec 35(3)(d) Constitution
- 48 hours – extended(Sec50(1)(a)-(d) CPA as amended by Act 85 of 1997
- *Interdictum de homine libero exhibendo* High Court Application
- *Sec342A*

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Ampie Ben Cindy and David (practicals)

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Police Investigation: Searches and Seizures (28)

- Sec 19 – 36 and 48 of the CPA
- Sec 12 of the Constitution
- Sec 9(2) and 10 of the Stock Theft Act 57 of 1959
- Sec 31 and 41 (as Amended of the Arms and Ammunitions Act 75 of 1969

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Objects which may be seized

- Sec 20 CPA
  - Which are or are reasonably believed to be involved in the commission or suspected commission of an offence , either in the RSA or elsewhere;
  - Which can provide evidence of the commission or alleged commission of an offence; or
  - Objects intended or reasonably suspected to be intended for use in an offence.

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Search of arrested person

- Section 23 CPA
  - Only peace officer may conduct search
  - May only seize sec 20 objects
  - Objects placed in safe custody SAP 13

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Search and seizure ito a warrant

- Sec 21 and 25 CPA
  - Warrant to be issued by magistrate or justice of the peace
  - On information under oath
  - That reasonable grounds exist to believe that
  - An item is in under control of a person or on his premises and
  - Such object is required as evidence in criminal proceedings

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Search and seizure without a warrant [29]

- Sec 22 – two situations
  - Consent
  - Delay - The official believes he would get warrant ito sec 21(1) but delay will defeat the purpose of the search
  - Sec 25 – same principles

28

Review of warrants and Police Action (32)

- Warrant can be set aside only if issued mala fides or improper exercise of judicial discretion can be proved
- Police action when action without warrant is fully reviewable

29

Police Action

- Entering a premises to arrest – Sec 48
  - Police official lawfully authorised
  - Officer identifies himself and requests permission to enter
  - May force entry is denied
- Entering a premises to obtain evidence – Sec 26
  - To question and obtain statement
  - May not enter private dwelling without permission
- Use of force – Sec 27 and 48
  - No knock – reasonable fear of disposal of evidence

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Relations with State Officials (34)

- Investigating Officer
  - Status of investigation
  - Bail
  - Questioning of client and legal visits
- Prosecutor – DPP
  - *Dominus Litis*
  - Code of ethics
  - Representations
- Clerk / Registrar
  - Administrative duties including requisitions, appeals, reviews

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State Officials

- Correctional Services
  - Legal visits and abuse of same
- Interpreter
  - Not translator
  - Other foreign languages
- Court orderlies
  - Order in court
  - Control of awaiting trial prisoners
  - Visits
  - Exhibits – Also dangerous exhibits

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Securing Attendance of Accused (38)

- Arrest / custody
- Summons
- Written Notice or Warning
- Indictment
- (this differs from the prescribed notes – explanation)

33

Lawful arrest

- Reason for arrest
- Taking of physical control
- Rights
- Taking Accused to faciiity for holding
- Last resort

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Arrest (40)

- With a warrant – Bench or J50
- Without a warrant ito sec 40 and 42 CPA
  - Also private or citizens arrests
- Immigration Act 13 of 2002
  - *Lawyers for Human Rights v Minister of Home Affairs and Others* [2017] ZACC 22
  - 48 hours
  - Sec 39 - lawfulness
- Sec 39 - lawfulness

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Arrest without a warrant

- Peace officer may arrest any person
  - Who commits or attempts to commit any offence in his presence
  - Whom he reasonably suspects having committed sch 1 offence
  - Who has escaped or is attempting to escape from lawful custody
  - Who possesses car or housebreaking implements
  - Who possesses property reasonably suspected to be stolen

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Arrest without a warrant (cont)

- Anyone found at night in suspicious circumstances
- Possession of stock or produce
- Liquor / arms and ammunitions
- Gambling
- Obstruction of duties
- Illegal alien
- Other legislation

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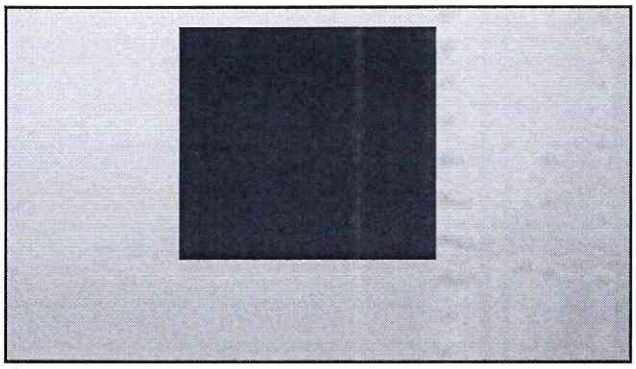
Arrest General (41)

- Duty to assist in effecting arrest - sec 47(1)
  - males between 16 and 60
  - when called upon by police
  - refusal – offence (Discrimination?)
- Duty to furnish name and address – sec 41(2)
- Resisting arrest
  - sec 49 – justifiable homicide sec 49(2)
  - dogs

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Summons (42)

- Sec 54 CPA
- Preferred method of securing attendance
- Prosecutor prepares summons
- Clerk of court issues
- Original or telegraphic
- Service by SAPS in person,
- Or to someone over 16 at home or work
- At least 14 days excl Sundays and public holidays Sec 54(3)
- Return of service - *prima facie* proof of service

41

Notice to Appear and Warning

- Sec 56 CPA – Written Notice
  - Fine of no more than R5000-00
  - Usually contains an AG
- Sec 72 – Warning
  - release on warning after arrest
  - notice to appear
  - accused under 18 – guardian also given notice

    Diversion as option for juveniles

42

Securing release of Accused (46)

- Taking instruction – information required
- When was accused arrested – 48 hours – remember the calculation
- Where was he arrested
- Where is he being detained
- What crime
- I/O
- Which court (will appear or has already appeared)
- Particulars of accused

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Bail Applications

- Police Bail – Sec 59 CPA
- Prosecutor Bail – Sec 59A CPA
- Court Bail
  - "Normal" applications
  - Application with additional burden



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"Police" Bail (48)

- Sec 59
- Any offence except part II and III of sch 2
- Only officers can grant bail
- Cash amount
- Deposited at police station
- Bail in effect until first appearance
- No conditions
- (Warning sec 72)

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"Prosecutor" Bail

- Sec 59A
- Sch 7
- Cash or guarantee
- Conditions may be imposed
- 1st appearance on next court day
- Court may amend conditions or amount

46

"Court" Bail

- Sec 60 CPA : Three categories
- Court has investigative role
- General – burden of proof
- Factors – likelihood – sec 60(4) and further
  - Endanger safety of public or commit sch 1 offence;
  - Evade trial;
  - Influence witnesses, tamper with evidence;
  - Jeopardise functioning of criminal justice system;
  - Disturb order or peace

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"Court" Bail (cont)

- Normal bail applications at court – those not falling within the police bail, prosecutor bail or special onus matters.
- Sec 60(11) – burden on accused
- Sec 60(11)(a) – sch 6 – accused to adduce evidence to satisfy the court that exceptional circumstances exist which in the interests of justice permits his release
- Sec 60(11)(b) - sch 5 - accused to adduce evidence to satisfy the court that the interests of justice permits his release
- *S v Mathebula* 2010 (1) SACR 55 (SCA)

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"Court" Bail (cont)

- Onus to start
- What if the state does not oppose?
- Access to docket at bail sec 60(14)
- Sec 60(11)(B) – disclosure of previous convictions and pending cases - ***
- R40 000-00 or 2 years and court can cancel bail
- Excessive bail amount
- Facts and principles to be considered
- Law of evidence – hearsay, opinion, previous convictions

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Postponement of Bail Application (52)

- Sec 60(2) and 50(6)(d)(i) – "... *the court is of the opinion that it has insufficient information or evidence at its disposal to reach a decision on the bail application.*"
- Widely abused: IO not available, address not confirmed, profile not drawn etc.
- "Not exceeding 7 days at a time."
- Don't just passively accept the postponement – consider if in the interests of justice.
- Court should enquire as to reasons for postponement – not just accept *ipse dixit* of the prosecutor.

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Procedure at Bail Applications (53)

- Disclose convictions of pending cases sec 60(11B)
- Who starts?
- Leading evidence or remining silent
- Use of transcript at trial, sec 60 (11B)(c) and sec 235
- Failure to comply with bail conditions
- Forfeiture
- And criminal liability sec 67(a)
- Payment of bail / guarantee – where the accused is held.
- Bail refunded to depositor only

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Important facts - evidence

- Fixed address;
- Fixed employment and time employed there;
- Character – be careful;
- Nature of crime accused is suspected of;
- Possible sentence;
- Probability of conviction – careful not to dress rehearse;
- Ability to travel or flee;
- Time period to finalisation;
- Access to state witnesses – access to evidence;
- Finances

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Refusal of Bail (56)

- Renewed application – new facts
- Bail Appeal
  - Sec 65 CPA – Appeal from lower courts (Appeal from higher court, see sec 22 of the High Court Act and 65A – AG / NPA can appeal)
  - Single judge -Also in local division
  - No new facts
  - Leave not required, but Notice is required possible drafting question)
  - Courts approach – remit or release
- Procedure – p57 NB

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Failure to appear or comply with conditions

- Failure to return – warrant
- Bail provisionally cancelled / estreated
- 14 day period – no appearance – final forfeiture
- Investigation of failure to appear – R300 or 3 months
- Warrant "held over"
  - Generally utilised for arrangements
  - No provision for same in sec 67 of CPA

(S v Lerumo & others 2018 (1) SACR 202 (NWM)

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Other methods of release

- Warning
  - Sec 72
  - Conditions may be set
- Juveniles
  - Care of parents
  - Also arrest sec 17 to 20 CJA
- Amendment of bail conditions
- Amendment ito sec 63A CPA

55

Assessment Release of Accused

- A 16 year old accused of armed robbery?
- An 18 year old accused of shoplifting a handful of computer games and DVD's?
- A mother of three accused of murdering her abusive husband?
- A police official charged with DUI on duty?
- Someone accused of raping a 13 year old?
- A prominent government official charged with corruption amounting to hundreds of thousands of Rands?
- My neighbour who shot and killed a trespasser in his home at night?
- Bail for our 4 friends?

56

Methods of disposing of a case (61)

- Representations
- Indemnities
  - Sec 204
  - Informal
- Admission of Guilt Fine
  - AG – previous conviction?
  - Sec 57 (before appearance) & 57A (after appearance but before plea) and section 342
  - Minor offences
  - Review – if arguable defence or paid AG to avoid detention

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Trial Preparation (64)

- Obtain charge sheet / indictment
- Study definitions of words or phrases
  - "dealing"
- Presumptions
  - Drug and Drug Trafficking Act 140 of 1992
  - Road Traffic Act 29 of 1989
- Competent verdicts- note sec 270 – p66
- Sentencing regimes

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Trial prep

- Common law offences
- Statutory offences
- Proof beyond reasonable doubt
- Access to police docket
  - refusal by state
  - not necessary for trial
  - identity of informers / intimidation of witnesses
  - state security
  - application to court

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Trial prep (68)

- Request for further particulars – scope of facts
  - before evidence is led – suggest before plea
  - sec 87
  - refusal by state
  - application to court
  - court refuses
  - application to high court for *mandamus*
- Accused may object to charges
  - sec 85 – too few particulars

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Trial prep - Consultation with client (69)

- What is his story?
- what is the state's version?
- be cautious – test client on his version (but be diplomatic too)
- "I don't know nothing"
- Obvious untruth – protect client from himself
- Don't make a fool of yourself
- Officer of the Court

61

Consultation (71)

- Put client at ease – remind him of extent of privilege
- If more than one accused – always consult separately
- "think" yourself into the scene
- Strategize
- Prepare client for proceedings = not coaching
- Prepare admissions

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Consultation

- After receiving docket
- Privilege
- Evaluate strengths and weaknesses
- Advise on advantages and disadvantages of leading options
- "lieg fabrieke" - criminal conduct – accomplice to perjury
- Client says he can influence presiding officer or see to it that the docket gets lost
- **WITHDRAW!!!!!!!**

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